

IN-CONVICTION-EXPUNGEMENT-PETITION
VERIFIED PETITION FOR EXPUNGEMENT OF CONVICTION RECORDS

STATE OF INDIANA

County of conviction: County of Lake

Name of court in the county of conviction: Lake Circuit Court sitting at Crown Point, Criminal Division

Cause number of the conviction: 45C01-0812-FB-00000000000123456

IN RE THE PETITION FOR EXPUNGEMENT OF THE RECORDS OF

Petitioner full legal name: Maria-Alejandra O'Shaughnessy-Whitfield

VERIFIED PETITION FOR EXPUNGEMENT OF CONVICTION RECORDS

Brought under I.C. 35-38-9-4, with the petition's contents fixed by I.C. 35-38-9-8 and the court's decision governed by I.C. 35-38-9-9. On this section the grant is discretionary rather than mandatory.

In Indiana, expungement means the records are sealed or restricted under I.C. 35-38-9-1(k). It does not mean they are destroyed, and the Office of Judicial Administration states that court records are not deleted or destroyed under I.C. 35-38-9.

On this section the effect is the Section 7 effect and not the Section 6 effect: the court records and the public records stay public, and are clearly and visibly marked as expunged. A grant under this section is also discretionary rather than mandatory.

THE PETITIONER

Petitioner full legal name: Maria-Alejandra O'Shaughnessy-Whitfield

Petitioner date of birth: 1968-12-31

Petitioner mailing address:

Petitioner telephone number and email address:

Last four digits of the Social Security number:

Only the last four digits belong on this petition. The full number goes on the Confidential Information Form in this packet, which is filed as a confidential document with the Notice of Exclusion of Confidential Information from Public Access.

THE CONVICTION THIS PETITION ADDRESSES

Date of conviction: 2009-02-28

Offense as it appears on the court record: Offense exactly as it appears on the boundary fixture court record, including the full charging description carried by that record

Offense level as it appears on the court record: Class B felony under the pre-2014 sentencing scheme, not covered by I.C. 35-38-9-2 or 35-38-9-3

Statutory section this petition is brought under: I.C. 35-38-9-4

Date the sentence, including any probation or parole, was completed: 2011-11-30

Whether the offense involved serious bodily injury:

Which section of I.C. 35-38-9 a conviction falls under, and whether an offense involved serious bodily injury, are legal judgments. This packet is built for the section named above; if that classification is not clear on your own record, stop and get legal help before filing.

THE STATUTORY CONDITIONS

Whether all fines, fees and court costs are paid and any restitution satisfied: All fines, fees and court costs are paid and the restitution obligation recorded on the boundary fixture court record is satisfied in full

Whether any criminal charges are pending anywhere: No criminal charges are pending anywhere

Whether the petitioner has been convicted of any crime within the applicable period: No conviction of any crime within the applicable period

Whether a petition under Sections 2 through 5 has been filed before: No petition under Sections 2 through 5 has been filed before

Whether the prosecuting attorney has given written consent: Not relied on; the full statutory period has elapsed

EVERY INDIANA CONVICTION, IN EVERY COUNTY

Every Indiana conviction in any county, and whether each is eligible yet:

.....
.....
.....

One petition per lifetime is allowed under I.C. 35-38-9-9(i). Petitions filed in separate counties count as one petition only where they fall inside a single 365-day window. List every conviction from your certified limited criminal history before you file.

ADDITIONAL INFORMATION

Additional information the petitioner wants the court to know:

.....
.....
.....

VERIFICATION AND SIGNATURE

IN-CONVICTION-EXPUNGEMENT-PETITION

VERIFICATION

I affirm, under the penalties for perjury, that the foregoing representations are true.

Verification and signature of the petitioner:

Date of the petitioner's signature:

Printed name: Maria-Alejandra O'Shaughnessy-Whitfield

FOR THE CLERK - LEAVE BLANK

Expungement cause number assigned by the clerk:

Filed on stamp applied by the clerk:

The expungement case is opened as case type XP under Administrative Rule 8(B)(3), and the clerk assigns its cause number at filing.

WHAT ACCOMPANIES THIS PETITION

The conviction insert CCA-XP-0220-7010, the Appearance by Unrepresented Person in Expungement Matter, Form ACR - the Notice of Exclusion of Confidential Information from Public Access - and the Confidential Information Form are delivered with this petition exactly as their issuer published them. They arrive blank and you complete them by hand.

The expungement case file is public until the order is granted.

IN-CONVICTION-EXPUNGEMENT-ORDER
ORDER ON THE VERIFIED PETITION FOR EXPUNGEMENT OF CONVICTION RECORDS

STATE OF INDIANA

County of conviction: County of Lake

Name of court in the county of conviction: Lake Circuit Court sitting at Crown Point, Criminal Division

Cause number of the conviction: 45C01-0812-FB-00000000000123456

IN RE THE PETITION FOR EXPUNGEMENT OF THE RECORDS OF

Petitioner full legal name: Maria-Alejandra O'Shaughnessy-Whitfield

ORDER ON THE VERIFIED PETITION FOR EXPUNGEMENT OF CONVICTION RECORDS

Tendered under I.C. 35-38-9-4 and I.C. 35-38-9-9.

COURT USE ONLY - UNEXECUTED PROPOSED ORDER. Nothing on this page has been decided.

THE CONVICTION THIS PETITION ADDRESSES

Date of conviction: 2009-02-28

Offense as it appears on the court record: Offense exactly as it appears on the boundary fixture court record, including the full charging description carried by that record

Offense level as it appears on the court record: Class B felony under the pre-2014 sentencing scheme, not covered by I.C. 35-38-9-2 or 35-38-9-3

Statutory section this petition is brought under: I.C. 35-38-9-4

Date the sentence, including any probation or parole, was completed: 2011-11-30

Findings of the court on the verified petition:

.....
.....
.....

Whether the petition is granted or denied:

Ordered, adjudged and decreed paragraphs:

.....
.....
.....
.....

Entities the court directs to seal or restrict records:

.....
.....

On granting a conviction expungement the court shall also order the related arrest records expunged under I.C. 35-38-9-6(g) and 35-38-9-7(e). The petitioner does not file separately for those.

Date of the court order:

Signature of the judge on the order:

Distribution list completed by the clerk:

FACTS PERTAINING TO EXPUNGEMENT MATTER _____:
CONVICTION FOR A FELONY THAT DID NOT RESULT IN SERIOUS BODILY INJURY

1. Petitioner was arrested in _____ County on _____ by _____
_____ employed by the law enforcement agency known as _____
under law enforcement agency case number _____;

2. Petitioner was convicted on the following charges on _____, under Cause Number
_____ in _____ Court, Criminal Division,
Room _____.

	Title	Class	Count	Category
a.				
b.				
c.				
d.				

3. Petitioner is not a person who is prohibited from seeking this remedy under the provisions of I.C. §35-38-9-4(b).

4. Elapsed time:

- ☐ Eight (8) years have passed between the date of Petitioner's conviction and the filing of this Petition.
- ☐ Three (3) years have passed between the date of completion of Petitioner's sentence, on _____, and the filing of this petition.
- ☐ The period of time required under IC § 35-38-9-4(c) has not passed, but the _____ County Prosecuting Attorney has provided written consent for a shorter elapsed time period (see Exhibit _____ attached, letter of consent from _____ County Prosecutor).

5. Criminal activity within the previous eight (8) years:

- ☐ Petitioner affirms that to the best of their knowledge, they have not committed another crime in any jurisdiction within the previous eight (8) years.
- ☐ Petitioner affirms that, to the best of their knowledge, they have not committed another crime in any jurisdiction within the shorter elapsed time period to which the prosecuting attorney has agreed.

6. Petitioner has:

- ☐ Paid all fines, fees, and court costs, and no restitution obligation was imposed as part of their sentence
- ☐ Satisfied their restitution obligation of \$_____ imposed as part of their sentence.
- ☐ Been found indigent as to all outstanding fines, costs, and fees ordered as part of their sentence.

7. Appellate activity:

- ☐ The case that Petitioner is requesting be sealed has not been appealed.
- ☐ The case that Petition is requesting be sealed was appealed on _____ under the following appellate cause number _____.

8. Related MC cause numbers:

- ☐ Court records stored under the following MC case/cause numbers constitute records of the sentencing court or juvenile court for the purposes of this order:

FINDINGS PERTAINING TO EXPUNGEMENT MATTER _____:
CONVICTION FOR A FELONY THAT DID NOT RESULT IN SERIOUS BODILY INJURY

The Court now finds by a preponderance of the evidence that:

1. Petitioner's verified petition for expungement seeks relief as provided by I.C. §35-38-9-4 for a conviction on a Class D felony offense that did not result in bodily injury, entered on the following charges on _____, under Cause Number _____ in _____, Court, Criminal Division, Room _____.

	Title	Class	Count	Category
a.				
b.				
c.				
d.				

2. Petitioner is not a person who is prohibited from seeking this remedy under the provisions of IC §35-38-9-4(b).

3. Elapsed time:

- ☐ Eight (8) years have passed between the date of Petitioner's conviction and the filing of this Petition.
- ☐ Three (3) years have passed between the date of completion of Petitioner's sentence, on _____ and the filing of this Petition.
- ☐ The period of time required under IC § 35-38-9-4(c) has not passed, but _____ County Prosecuting Attorney has provided written consent for a shorter elapsed time period (see Exhibit _____ attached, letter of consent from _____ County Prosecutor).

4. Criminal activity within the previous eight (8) years:

- ☐ Petitioner has not been convicted of another crime in any jurisdiction within the previous eight (8) years.
- ☐ Petitioner has not been convicted of another crime in any jurisdiction within the shorter elapsed time period to which the prosecuting attorney has agreed.

5. Petitioner has:

- ☐ Paid all fines, fees, and court costs, and no restitution obligation was imposed as part of their sentence
- ☐ Satisfied their restitution obligation of \$_____ imposed as part of their sentence.
- ☐ Been found indigent as to all outstanding fines, costs, and fees ordered as part of their sentence.

6. Appellate activity:

- ☐ The case that Petitioner is requesting be sealed has not been appealed.
- ☐ The case that Petition is requesting be sealed was appealed on _____ under the following appellate cause number _____.

7. Related MC cause numbers:

- ☐ Court records stored under the following MC case/cause numbers constitute records of the sentencing court or juvenile court for the purposes of this order:

8. The facts and circumstances pertaining to both Petitioner's prior criminal conduct and Petitioner's current lifestyle warrant the expungement of the conviction records listed in EXPUNGEMENT MATTER _____ of this Petition.

The court now finds that the Petition as to EXPUNGEMENT MATTER _____ shall be GRANTED.

NOT PUBLIC RECORD

EXHIBIT A, Page ____ of ____:

**FINDINGS AND ORDER GRANTING PETITION FOR EXPUNGEMENT OF CONVICTION RECORDS
PURSUANT TO I.C. §35-38-9 (XP Cause Number: _____)**

EXPUNGEMENT MATTER _____,

PETITIONER IDENTIFICATION INFORMATION:

Full Name: _____

DOB: _____

SSN: _____

Alias Names, DOBs and SSNs:

Addresses since arrest:

INDIVIDUAL ARREST INFORMATION:

Criminal Cause Number: _____

Related MC cause/case numbers:

Arresting Agency: _____

County/City of Arrest: _____

Law Enforcement Agency Case Number: _____

Date of Arrest: _____

Date of Conviction: _____

List of Charges:

Disposition of Charges:

☐ Expunged pursuant to I.C. § 35-38-9-6

☐ Expunged pursuant to I.C. § 35-38-9-7

☐ NOT expunged

NOT PUBLIC RECORD

STATE OF INDIANA

IN THE _____ COURT

COUNTY OF _____

CAUSE NO. _____

IN RE THE PETITION FOR EXPUNGEMENT
OF RECORDS OF ARREST, CRIMINAL CHARGES,
OR JUVENILE DELINQUENCY ALLEGATIONS OF:

Petitioner

APPEARANCE BY UNREPRESENTED PERSON IN EXPUNGEMENT MATTER

1. My name is _____ and I am the Petitioner in this case I am not represented by a lawyer.

2. My current address is:

Email address: _____

☐ *I will accept service at the above email address.*

Phone: _____

Fax: _____

OR, if in a related case, you have used the Attorney General confidential address, you may check the box below:

☐ Attorney General confidential address

3. This is an XP case type as defined in Administrative Rule 8(B)(3).

4. There are related cases: *(If yes, please indicate below)*

☐ Yes

☐ No

Caption and case number of related cases:

Caption: _____ Case No.: _____

Caption: _____ Case No.: _____

Caption: _____ Case No.: _____

Caption: _____ Case No.: _____

Caption: _____ Case No.: _____

Caption: _____ Case No.: _____

Additional information as required by local rule:

Signature

CERTIFICATE OF SERVICE

☐ I hereby certify that I sent a copy of this document on _____ by first-class U.S. mail, postage prepaid or via hand-delivery to the _____ County Prosecutor at the following address:

☐ I hereby certify that on _____ a copy of this document was served upon the _____ County Prosecutor via the Indiana E-filing System.

Signature

Form ACR (Access to Court Records)

STATE OF INDIANA IN THE _____ COURT

COUNTY OF _____ CAUSE NO. _____

IN RE THE PETITION FOR EXPUNGEMENT
OF RECORDS OF ARREST, CRIMINAL CHARGES,
OR JUVENILE DELINQUENCY ALLEGATIONS OF:

Petitioner

**Notice of Exclusion of Confidential Information from Public Access
(FILED WITH TRIAL COURT CLERK)**

Contemporaneous with the filing of this notice, _____ has filed confidential information under the Indiana Rules on Access to Court Records. _____, provides this notice that the confidential information is to remain excluded from public access in accordance with the authority listed below:

Name or description of document

ACR grounds for exclusion

Confidential Information Form listing
Petitioner's full Social Security Number

Access to Court Records Rule 5

Signature

CERTIFICATE OF SERVICE

☐ I hereby certify that I sent a copy of this document on _____ by first-class U.S. mail, postage prepaid or via hand-delivery to the _____ County Prosecutor at the following address:

☐ I hereby certify that on _____ a copy of this document was served upon the _____ County Prosecutor via the Indiana E-filing System.

Signature

Not Public Record

CONFIDENTIAL INFORMATION FORM

XP CAUSE NUMBER: _____

PETITIONER'S NAME: _____

PETITIONER'S FULL SOCIAL SECURITY NUMBER: _____

**ATTENTION CLERK: FOR SELF REPRESENTED LITIGANTS TREAT THIS FORM
AS IF IT IS PRINTED ON GREEN PAPER.**

IF THIS DOCUMENT IS E-FILED, FILE THIS AS A CONFIDENTIAL DOCUMENT

Not Public Record